

1                   **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2                               STATE OF OKLAHOMA

3                               2nd Session of the 60th Legislature (2026)

4   ENGROSSED SENATE

5   JOINT

6   RESOLUTION NO. 39

By: Paxton and **Burns** of the  
Senate

and

Hilbert of the House

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11       A Joint Resolution directing the Secretary of State  
12       to refer to the people for their approval or  
13       rejection a proposed amendment to Section 8B of  
14       Article X of the Oklahoma Constitution, which relates  
15       to the limit on percentage of fair cash value of real  
16       property; reducing the limit for certain tax years;  
17       providing ballot title; ordering special election on  
18       certain date; and directing filing.

19       BE IT RESOLVED BY THE SENATE AND THE HOUSE OF REPRESENTATIVES OF THE  
20       2ND SESSION OF THE 60TH OKLAHOMA LEGISLATURE:

21       SECTION 1. The Secretary of State shall refer to the people for  
22       their approval or rejection, as and in the manner provided by law,  
23       the following proposed amendment to Section 8B of Article X of the  
24       Oklahoma Constitution to read as follows:

Section 8B. Despite any provision to the contrary, on and after  
January 1, 2013, the fair cash value of any parcel of locally

1 assessed real property shall not increase by more than five percent  
2 (5%) ~~in any taxable year~~ for tax years 2013 through 2026 and three  
3 percent (3%) for tax years 2027 and subsequent tax years; provided,  
4 if such property qualified for a homestead exemption or is  
5 classified as agricultural land, any increase to the fair cash value  
6 of such locally assessed real property in a taxable year shall be  
7 limited to three percent (3%) for tax years 2013 through 2026 and  
8 one percent (1%) for tax year 2027 and subsequent tax years. The  
9 provisions of this section shall not apply in any year when title to  
10 the property is transferred, changed, or conveyed to another person  
11 or when improvements have been made to the property. If title to  
12 the property is transferred, changed, or conveyed to another person,  
13 the property shall be assessed for that year based on the fair cash  
14 value as set forth in Section 8 of Article X of this Constitution.  
15 If any improvements are made to the property, the increased value to  
16 the property as a result of the improvement shall be assessed for  
17 that year based on the fair cash value as set forth in Section 8 of  
18 Article X of this Constitution. The provisions of this section  
19 shall not apply to any personal property which may be taxed ad  
20 valorem or any property which may be valued or assessed by the State  
21 Board of Equalization.

22 The Legislature shall enact any laws necessary to implement the  
23 provisions of this section.  
24

SECTION 2. The Ballot Title for the proposed Constitutional amendment as set forth in SECTION 1 of this resolution shall be in the following form:

BALLOT TITLE

Legislative Referendum No. \_\_\_\_\_ State Question No. \_\_\_\_\_

THE GIST OF THE PROPOSITION IS AS FOLLOWS:

This measure amends Section 8B of Article 10 of the Oklahoma Constitution, which limits the annual growth of the fair cash value of real property to five percent and further limits the growth to three percent for real property for which a homestead exemption is granted and real property classified as agricultural land. The measure would reduce those limits to three percent and one percent, respectively.

SHALL THE PROPOSAL BE APPROVED?

FOR THE PROPOSAL — YES \_\_\_\_\_

AGAINST THE PROPOSAL — NO \_\_\_\_\_

SECTION 3. A special election is hereby ordered to be held throughout the State of Oklahoma on the date of August 25, 2026, at which time the proposed amendment to the Oklahoma Constitution, as set forth in SECTION 1 of this resolution, shall be submitted to the people of Oklahoma for their approval or rejection as and in the manner provided by law.

SECTION 4. The President Pro Tempore of the Senate shall, immediately after the passage of this resolution, prepare and file

1 one copy thereof, including the Ballot Title set forth in SECTION 2  
2 hereof, with the Secretary of State and one copy with the Attorney  
3 General.

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5 COMMITTEE REPORT BY: COMMITTEE ON RULES, dated 04/06/2026 - DO PASS,  
6 As Coauthored.

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